

they were interpreted in accordance with Art. 69 EPC 1973 and its Protocol. In this context, the national laws of the contracting states relating to infringement should not be considered, for there was a clear distinction between the protection which was conferred and the rights which were conferred by a European patent. The **protection conferred by a patent** was determined by the terms of the claims (Art. 69(1) EPC 1973), and in particular **by the categories of such claims and their technical features**. In contrast, the rights conferred on the proprietor of a European patent (Art. 64(1) EPC 1973) were the legal rights which the law of a designated contracting state might confer upon the proprietor. In other words, in general terms, determination of the "extent of the protection conferred" by a patent was a determination of what was protected, in terms of category plus technical features; whereas the "rights conferred" by a patent were related to how such subject-matter was protected. When deciding upon the allowability of an amendment involving a change of category, the considerations were, in principle, the same as when deciding upon the allowability of any other proposed amendment under Art. 123(3) EPC 1973.

2.7.1 From product claim to a claim directed to the use of the product

a) Different categories of use claims

Enlarged Board decision G 2/88 (OJ 1990, 93) related to a change of claim category in opposition proceedings, and in particular to the change from a product claim to a claim directed to the use of the product for a particular purpose, which the Enlarged Board allowed for the use of a particular physical entity to achieve an effect. The **protection conferred by a patent** was determined by the terms of the claims (Art. 69(1) EPC 1973), and in particular **by the categories of such claims and their technical features**. An amendment of granted claims directed to "a compound" and to "a composition including such compound", so that the amended claims were directed to "the use of that compound in a composition" for a particular purpose, was not open to objection under Art. 123(3) EPC 1973. For it was generally accepted as a principle underlying the EPC that a patent which claimed a physical entity per se, conferred absolute protection upon such physical entity, for all uses of such physical entity, whether known or unknown. It followed that if it could be shown that such physical entity (e.g. a compound) was already part of the state of the art, then a claim to the physical entity per se lacked novelty. It also followed that a claim to a particular use of a compound was in effect a claim to the physical entity (the compound) only when it was being used in the course of the particular physical activity (the use), this being an additional technical feature of the claim. Such a claim therefore conferred less protection than a claim to the physical entity per se.

However, the Enlarged Board distinguished between use claims, which define the use of a particular physical entity **to achieve an "effect"**, and claims which define such a use **to produce a "product"**. The latter type of claim was a process claim within the meaning of Art. 64(2) EPC 1973.

In T 401/95 the board, with reference to G 2/88 (OJ 1990, 93), identified two different categories of use claim, namely

(i) the use of a physical entity to achieve an effect, and

(ii) the use of a physical entity to produce a product.

A use claim of the latter category (ii) is to be considered as a process claim comprising physical steps for producing the product using the physical entity with the consequence that this type of use claim is a process claim within the meaning of Art. 64(2) EPC 1973. Pursuant to that article, the product insofar as it is **directly obtained** by that process, is also protected. Hence, the product, when obtained by that process, is within the scope of protection conferred by that type of use claim. Consequently, the use claim as amended conferred protection to the claimed use and to the product directly obtained by the claimed process, which, in the case at issue, extended the protection conferred (for a case where the issue of Art. 64(2) EPC 1973 was not considered, see however T 879/91).

The board in T 75/90 allowed a switch from a claim for a "transport box ... adapted for the method according to one of the claims 1 to 3" to one for the "use of transport box adapted for the method".

b) From product claim to a claim directed to using a product to achieve an effect

In T 134/95 a patent had been granted in respect of a "container for medical use", designed for the separate storage and the mixing of compounds. The protection conferred therefore related to the apparatus and, necessarily, to its use at least for the purposes of storage and mixing. After amendment, the claim became a use claim, covering only the use of the container and no longer protecting the apparatus as such. Having pointed out that inventions of this kind were designed with a particular object in mind and could not normally be used for other purposes, the board noted that in this case, the change of category, replacing the granted claim with a claim for the use of the container, had the effect of limiting the scope of protection. The two stages of the process therefore in no way had the effect of modifying the starting solutions with a view to obtaining or manufacturing a product. This use therefore fell into the category "use of a physical entity to obtain an effect or result" (see G 2/88, OJ 1990, 93), and on this basis the change of category was allowable.

A change from a product claim to a claim for the use of the product to produce an effect was also allowed in T 568/94, T 78/97, T 977/02.

c) From product claim to a claim directed to using a product for producing another product – Article 64(2) EPC

In T 912/91 the board held that the change of claim category from the granted product claims for composite bodies to use of graphite for obtaining a sintered composite ceramic body having certain characteristics did not broaden the scope of protection of the granted claims. Even if it were considered that the use claim was notionally equivalent to a claim to a process including the step of using the graphite in the sintered body and that the effect of Art. 64(2) EPC 1973 was to confer protection on the product resulting from this process as well, this would not represent an extension of protection within the meaning of

Art. 123(3) EPC 1973, since the sintered composite body was defined in the use claim in a more restricted way than the composite body of the granted claim (narrower range of the graphite content, etc.).

T 37/90 allowed the change from a claim to a product comprising a certain material to the use of the material for the manufacture of the product.

In T 282/09 the claims of the main request as amended comprised only use claims, which had replaced the product claims directed to a physical entity of the patent as granted. The board held that according to EPO practice (see T 401/95) a claim directed to "the use of a physical entity to produce a product" was to be considered as a process claim comprising physical steps for producing the product using the physical entity, with the consequence that this type of use claim was a process claim within the meaning of Art. 64(2) EPC. Pursuant to that article of the EPC, the product, insofar as it was directly obtained by that process, was also protected. Hence, the product, when obtained by that process, was within the scope of protection conferred by that type of use claim (see decision G 2/88, OJ 1990, 93, point 5.1 of the Reasons). In the case at issue, the protection conferred after amendment extended beyond that conferred before, contrary to the requirements of Art. 123(3) EPC, because the product obtained using the physical entity was not protected before the amendment of the claims, but was now protected as a result of the amendment. See also T 1471/14.

In T 1954/12 claim 3 as granted was to a cell characterised by the presence of a recombinant nucleic acid encoding VKOR. Claims 2 and 3 of the main request were directed to the use of the cell of granted claim 3 for making a VKD protein. The board observed that a distinction had been made in G 2/88 (OJ 1990, 93) between "a patent whose claimed subject-matter is the use of a product to achieve an effect ... [and] ... a patent whose claimed technical subject-matter is a process of manufacture of a product". For this latter case, it was stated with reference to Art. 64(2) EPC that "protection is conferred not only upon the claimed process of manufacture, but also upon the product resulting directly from the manufacture". The board noted that the methods of claims 2 and 3 were directed to the manufacture of a particular product, namely a VKD protein, and thus, the protection conferred by these claims was not limited to the claimed process of manufacture but extended also to this product. The protection conferred by granted claim 3 did not extend to this product and, in this regard, the protection conferred by claims 2 and 3 went beyond the protection conferred by granted claim 3. However, decision G 2/88 required **comparing the totality of the claims before and after the amendment**. In the case at issue, the protection conferred by granted claims 4-7 extended, in accordance to Art. 64(2) EPC, to the product obtained, i.e. a VKD protein. The board came to the conclusion that granted claims 4-7 provided protection for the product obtained by the methods of claims 2 and 3 of the main request, namely a VKD protein. The requirements of Art. 123(3) EPC were fulfilled.

2.7.2 From device claim to a method claim directed to using the device to carry out a work method

In T 653/16 the appellant (opponent) took the view that changing the category of claim 1 as granted from one directed to a device (floatable harbour power supply) to a method claim for carrying out a work method (method for supplying external power to a ship in the harbour) using the device extended the scope of protection. The board disagreed. In the case in hand, the patent as granted had solely contained claims directed to a physical entity per se. The Enlarged Board of Appeal had acknowledged that it was a fundamental principle of the EPC that any patent which claimed a physical entity per se conferred absolute protection upon that entity, i.e. for all uses of the entity, whether known or unknown (G 2/88, OJ 1990, 93). Contrary to the appellant's opinion, the scope of protection conferred by the patent as amended in line with auxiliary request 2 did not extend to cover the ship since that request was no longer directed to physical entities – for want of any device claims.

2.7.3 From product or product-by-process claim to a claim directed to a process for manufacturing/preparing the product, and vice versa

According to established case law, a product claim confers protection to all processes for making that product, such that the replacement of a claim directed to a product by a claim directed to a specific process or method for making that product does not extend the protection conferred thereby (T 674/02 with reference to T 54/90, T 28/92, T 468/97, T 554/98; see also T 191/90, T 762/90, T 153/91, T 601/92, T 646/98, T 425/02, T 1139/06).

In T 423/89 the change in category from a product-by-process claim to a manufacturing process claim was admissible. In T 402/89, however, the board pointed out, in passing, certain difficulties in interpreting the term "protection conferred".

In T 5/90 the patent was granted with a claim in the form "a product having product features x and product-by-process features characteristic of process steps y". This claim, however, turned out not to be novel. The patentee finally claimed "a process of making a product having product features x by using process steps y and process steps z". The board interpreted such a claim as covering the process steps only in so far as a product having product features x actually resulted. This was called a **process-limited-by-product claim** by the board. The direct product of this process would also be protected under the provisions of Art. 64(2) EPC 1973, but such product inevitably fell within the scope of the product claim originally granted. The board regarded a process-limited-by-product claim of this type as clearly complying with the requirements of Art. 123(3) EPC 1973 because it would only be infringed if the product fell within the originally granted product claim and in addition the particular form of manufacture using process steps z was used (see also T 562/04).

In T 20/94 the patent as granted exclusively comprised process claims for preparing a product. In the form as amended it comprised a product claim relating to the product per se. The board stated that the protection conferred by a claim directed to a process for

preparing a product covered a product directly obtained by that process (Art. 64(2) EPC 1973), but it was not protected when obtained by any other process. However, the protection conferred by a claim directed to a product per se was absolute upon that product. The product claim thus conferred protection on that product regardless of the process by which it was prepared. The appellant attempted to overcome this objection by formulating the product claim as amended in the form of a product-by-process claim using the term "directly obtained". The board did not agree with this line of argument, stating that a product-by-process claim was interpreted as a claim directed to the product per se, since the only purpose of referring to a process for its preparation was to define the subject-matter for which protection was sought, which was a product. Thus amended claim 1 in the case in question contravened Art. 123(3) EPC 1973.

In T 1206/01 the board pointed out that according to the established case law of the boards of appeal a product claim conferred protection on the claimed product, regardless of the process or method by which it was prepared. Therefore a change of category from a granted product claim to a process claim restricted to one or more methods of preparing the product did not extend the protection thereby conferred.

2.7.4 From a product claim to a product-by-process claim

In T 794/03 claim 1 as granted had been a substance claim for a plain-bearing composite material, preferably for manufacturing bearing bushes, whereas claim 1 according to the main request pending on appeal was for a plain-bearing bush made of the (in the meantime, limited) composite material. The board found that this amended claim amounted to a kind of "product-by-process" claim, which meant that, in order to determine the extent of protection it conferred, it had to establish what features the process lent the end product. It concluded that the scope of protection had indeed been extended.

2.7.5 From method of operating a device claim to product claim

In T 426/89 (OJ 1992, 172) claim 1 as granted and claim 1 of the main request related to a process for operating a pacemaker. The board noted that an actual operating method for a pacemaker for arresting a tachycardia would necessarily be a method for treating the human (or animal) body by therapy, and would not be patentable. However, the board agreed with the patentee that the claim referred to the steps in a technical method which did not define a method of treatment but rather, in functional terms, the structural features of a pacemaker. However, the board found the claim to be contrary to Art. 84 EPC 1973. The differences between the claim 1 according to the auxiliary request and the granted version were that in claim 1 the terms "Method for the operation of a pacemaker", had been replaced by "Pacemaker". The board held that claim 1 as granted was already a product claim containing a functional definition of a pacemaker. So the seeming change of category did not alter the content of the claim but simply served to clarify it (see also T 378/86, OJ 1988, 386).

In T 82/93 (OJ 1996, 274) claim 1 as granted related to a method of operating a pacer. The board found that this claim defined a method for treatment of the human body by therapy and therefore was not allowable under Art. 52(4) EPC 1973. It held that the device